Brazoria County District Court

Cause No. 2024-CV-0011

Sarah Walters, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-2-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant, by and through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

Pursuant to Rule 92 of the Texas Rules of Civil Procedure, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence as required by the Constitution and laws of the State of Texas.

For further answer, and without assmuing any burden of proof that the law places on Plaintiff, Defendant asserts the flolowing affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision at issue. Plaintiff failed to yield the right-of-way at the intersection, failed to keep a proper lookout, and falied to maintain reasonable control of the vehicle. Under Chapter 33 of the Texas Civil Practcie and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused, in whole or in part, by a preexisting or unrelated condition, or by a subsequent event, and not by the collision. Defendant is not liable for such damages.

Third, Plaintiff has failed to mitigate damages, including by failing to follow reasonable medical advice and by incurring medical expenses that were unreasonable or unnecessary. Defendant reserves the right to seek a credit or reduction for any amounts paid or payable by a collateral source to the extent permitted by Texas Civil Practice and Remedies Code Section 41.0105.

Defendant reserves the right to amend this Answer as discovery proceeds.